

## 24SMCV00863 24SMCV00863

County: los-angeles

Division: Civil Law and Motion

Department: 205

Hearing date: 2026-07-02

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Case Number: 24SMCV00863 Hearing Date: July 2, 2026 Dept: 205

Superior Court of California

County of Los Angeles

Beverly

Hills Courthouse | Department 205

LINHART GLOBAL, LLC, et al.

Plaintiff,

v.

MICHALE J. KRUPIN, et al.,

Defendants.

Case No.:

24SMCV00863

Hearing Date: 7/2/26

Trial Date:

8/24/26

[TENTATIVE] RULING RE:

MOTION FOR TERMINATING SANCTIONS

## Background

### Plaintiff

alleges Defendants executed and delivered a promissory note to Plaintiff on October 28, 2022 promising to pay \$410,000.

Plaintiff alleges Defendants were required under the terms of the note to pay Plaintiffs \$20,000 per month until the note was paid in full commencing on or about January 10, 2023. Plaintiff alleges Defendants made their initial payment of \$20,000 on January 10, 2023 and failed to make any payments thereafter.

Plaintiff alleges Defendants have defaulted on the balance of the Note in the sum of \$390,000. On February 26, 2024, Plaintiff filed a complaint alleging a single cause of action for breach of promissory note.

### On

May 21, 2026, Plaintiff filed the instant Motion for Terminating Sanctions. On June 18, 2026, Defendant Michael J. Krupin filed an opposition to the motion. On June 25, 2026, Plaintiff filed a reply.

## Evidentiary Objections

### Plaintiff's

Objections to evidence in support of Opposition: SUSTAIN—Objection Nos. 1-9.

## Motion for Terminating

### Sanctions Standard

“To the extent

authorized by the chapter governing any particular discovery method or any other provision of this title, the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose the following sanctions against anyone engaging in conduct that is a misuse of the discovery process:...(d) The court may impose a terminating sanction by one of the following orders: (1) An order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process. (2) An order staying further proceedings by that party until an order for discovery is obeyed. (3) An order dismissing the action, or any part of the action, of that

party. (4) An order rendering a judgment by default against that party.” (Code of Civ. Proc., §2023.030, subd. (d).)

“Misuses of the

discovery process include, but are not limited to, the following:...(d) Failing to respond or to submit to an authorized method of discovery....(g) Disobeying a court order to provide discovery...(i) Failing to confer in person, by telephone, or by letter with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, if the section governing a particular discovery motion requires the filing of a declaration stating facts showing that an attempt at informal resolution has been made.” (Code of Civ. Proc., §2023.010, subd. (d), (g), (i).)

Terminating

sanctions should not be imposed lightly and a graduated imposition of

sanctions should be used if possible. (Mileikowsky v. Tenet Healthsystem (2005) 128

Cal.App.4th 262, 279-280 (decision to impose terminating sanctions should not be made lightly

but such sanctions are justified in cases of repeated discovery abuse and evidence that lesser

sanctions will be ineffectual); Thomas v. Luong (1986) 187 Cal.App.3d 76, 81–82; see also

Morgan v. Ransom (1979) 95 Cal.App.3d 664, 669 (incarcerated, indigent, pro per plaintiff's

delay in serving responses insufficient to justify imposition of terminating sanctions where no

prejudice demonstrated). Moreover, discovery sanctions are not intended to punish but to

accomplish discovery. (Newland v. Supr. Ct. (1995) 40 Cal.App.4th 608, 613.)

“The discovery

statutes...evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. Although in extreme cases a court has the authority to order a terminating sanction as a first measure, a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.”

(Lopez v. Watchtower Bible & Tract Society of New York, Inc.

(2016) 246 Cal.App.4th 566, 604.)

Where a party

repeatedly violates discovery orders, including the parties' discovery stipulations, a court is “not required to allow this pattern of abuse to continue ad infinitum.” (Mileikowsky, supra, 128 Cal.App.4th at 280.)

Thus, a court does not abuse its discretion in ordering terminating sanctions against a party who has repeatedly refused to answer discovery requests despite numerous extensions, court orders requiring discovery responses, including stipulations, and imposition of monetary sanctions. (Id.)

Terminating sanctions under these circumstances are proper even if the responding party “only” complied with discovery because of “the threat of terminating sanctions.” (Id.)

“Discovery

sanctions are intended to remedy discovery abuse, not to punish the offending party. Accordingly, sanctions should be tailored to serve that remedial purpose, should not put the moving party in a better position than he would otherwise have been had he obtained the requested discovery, and should be proportionate to the offending party's misconduct.” (Williams v. Russ (2008) 167 Cal.App.4th 1215, 1223.)

Analysis

Plaintiff

requests terminating sanctions against Defendant Michael Krupin based on his intentional violation of the Court's April 2, 2026 order compelling his attendance at deposition. Plaintiff asks that Defendant's answer be stricken and monetary sanctions be imposed in the amount of \$2,800.

The Court is

required to use an incremental approach to imposition of discovery sanctions. Plaintiff fails to identify a history of repeated discovery abuse or other circumstances that would justify imposition of “doomsday” sanctions against Defendant for violating the Court’s April 2, 2026 discovery order. Although there has been difficulty scheduling Defendant’s deposition and Defendant has not appeared previously for a scheduled deposition, the inability to do so has largely been attributable to scheduling conflicts and Defendants’ health issues. (Motion, Cole Dec., ¶¶2-37.)

However, the trial date is set for August 24, 2026.

The discovery cut-off is set for July 24, 2026. Even if Defendant’s claims of medical issues, unavailability and change of counsel is considered, Plaintiff has been attempting to depose Defendant for two years and Defendant undisputedly disobeyed the Court’s April 2, 2026 order compelling his attendance at deposition. Plaintiff cannot prosecute his case without deposing Defendant, who signed the promissory note on behalf of Krupin Partners Insurance Services, LLC and as an individual. (Complaint, Ex. A.) A terminating sanction under these circumstances is warranted to achieve discovery and remedy the effect that Defendant’s noncompliance has had on Plaintiff’s ability to prepare his case.

Defendant argues in opposition that he did not fail to appear at his November 20, 2025 deposition and his failure to confirm non-attendance of the April 30, 2026 deposition was unintentional. However, section 2023.010 includes “disobeying a court order to provide discovery” as a “misuse of the discovery process.” There is no requirement that the failure to disobey be intentional or willful and sanctions may be imposed for “misuse of the discovery process” per section 2023.030.

An OSC re:

Terminating Sanctions is set for July 23, 2026.

The motion for terminating sanctions is continued to that date. If Defendant has not appeared for deposition by that date, the Court will impose terminating sanctions and strike Defendant’s answer and enter his default.

Plaintiff’s

request for monetary sanctions is granted.

Plaintiff requests sanctions in the amount of \$2,810 based on 5.5 hours at

\$500/hr and a \$60 filing fee. Plaintiff's request is reasonable.

Conclusion

Plaintiff's

Motion for Terminating Sanctions is CONTINUED to July 17, 2026 as to the terminating sanctions and GRANTED as to the monetary sanctions. Defendant is ordered to pay monetary sanctions in the amount of \$2,810 by July 16, 2026.

Dated: July 2, 2026

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Edward B. Moreton, Jr.

Judge of the Superior Court